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Academic freedom toolkit

McMaster University

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CAUT provided legal support for a group of faculty at McMaster University seeking justice at the Ontario Divisional Court over an unfair internal hearing process that imposed serious – and for three professors career-ending – penalties for which the University provides no avenue of appeal. The case raises important questions about academic freedom, due process, and procedural fairness.

Beginning in 2006, the faculty members, all tenured at McMaster’s DeGroote School of Business (DSB) were troubled, along with a large number of colleagues, by the actions of the Dean. They expressed concerns about the Dean’s plans to create a satellite campus in Burlington, Ontario, and his hiring and continuation of contractually-limited teaching staff rather than tenure-track faculty.

Academic Freedom Toolkit
Understanding academic freedom
Overview
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Historical and legal foundations

In 2007, the University disciplined the DSB area chairs for publicly disagreeing with the Dean, although the discipline was withdrawn after a grievance and intervention by CAUT. One year later, a professionally-audited, secret-ballot vote was conducted as to whether the DSB faculty had confidence in the Dean, and 83% voted non-confidence.

Major academic
freedom cases in
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After a review authorized by the University administration in early 2010, the President invoked McMaster's deeply flawed Anti-Harassment Policy, and a senior administrator pressed critics of the Dean to file complaints against the Dean and University. At the same time, the same administrator was encouraging supporters of the Dean to file complaints against the Dean's critics.

Under McMaster's policy, the complaints were brought before a tribunal consisting of three faculty with no legal or judicial experience. Fifteen individualized complaints were forced into two group complaints, pitting two sides against each other in a single hearing. Major concerns with the process include the following:

- The Dean's critics, whose counsel indicated they needed 74 days of hearing, were granted only 21;
- one of the Tribunal members was absent for key parts of the testimony that was used to reach a verdict;
- The same Tribunal member was made an associate dean in the midst of the process;
- The Tribunal failed to keep a complete audio recording of the proceedings, prejudicing the participants' right to properly scrutinize the proceedings for the purpose of preparing a judicial review;
- While finding the Dean, the University, and the Dean's supporters innocent, the Tribunal found the Dean's critics guilty and imposed harsh penalties, with no right of appeal.

The Tribunal's decisions have been described by Dr. Donald Carter,

former Chair of the Ontario Labour Relations Board, former Dean of the Queen's University School of Law, and former Chair of Ontario's Public Service Grievance Board, as "excessive" and "far too draconian and discriminatory."

Documents

- [Factum of the Applicants](#)
- [Affidavit of D. Carter](#)
- Affidavit of Dr. Bart
- [Affidavit of Dr. Kleiman](#)
- Affidavit of Dr. Pujari
- [Affidavit of Dr. Ray](#)
- [Affidavit of Dr. Richardson](#)
- [Affidavit of Dr. Rose](#)
- Affidavit of Dr. Steiner
- Affidavit of Dr. Taylor
- [Affidavit of C. Milne](#)
- [Affidavit of J.C. Hopkins](#)

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